

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: August 21, 2026

2	Bansal vs. Sehgal 2023-01312162	Motion for Judgment on the Pleadings *****
3	Thomas Solar Energy vs. Orange County Sanitation District	1. Motion for Leave to Amend 2. Motion to Strike Complaint 3. Order to Show Cause

	2023-01337224	Request for Judicial Notice Defendant Orange County Sanitation District's Request for Judicial Notice is GRANTED. (Evid. Code §452, subds. (c); see also <i>Kalnoki v. First American Trustee Servicing Solutions, LLC</i> (2017) 8 Cal.App.5th 23, 37 [taking judicial notice of the records of the California Secretary of State under Evid. Code, § 452, subds. (c), (h)]; <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1286-1287 [taking judicial notice of a certificate of filing and suspension from the secretary of state relating to the corporate status of an entity].) The Court takes judicial notice of the fact that Plaintiff Thomas Solar Energy's powers, rights, and privileges have been suspended by the Franchise Tax Board since December 2, 2024. Motion to Strike Defendant Orange County Sanitation District's Motion to Strike Plaintiff Thomas Solar Energy's First Amended Complaint is GRANTED. (Code Civ. Proc. §§ 435, 436; Rev. & Tax. Code § 23301; Corp. Code § 2205; <i>Casiopea Bovet, LLC v. Chiang</i> (2017) 12 Cal.App.5th 656, 662, citation omitted ["A corporation that has had its powers suspended 'lacks the legal capacity to prosecute or defend a civil action during its suspension.' . . . Nor, during the period of suspension, may the corporation prosecute or defend an action, seek a writ of mandate, appeal from an adverse judgment, or renew a judgment obtained before suspension."].) Code Civ. Proc. § 436 provides as follows: The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws
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		of this state, a court rule, or an order of the court. "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.) Since Plaintiff Thomas Solar Energy lacks the capacity to prosecute this action due to the FTB suspension, the First Amended Complaint is not drawn or filed in conformity with the laws of this state and is therefore subject to being stricken. Motion for Leave to Amend Answer Defendant Orange County Sanitation District's Motion for Leave to File an Amended Answer is DENIED without prejudice as MOOT in light of the foregoing ruling striking the First Amended Complaint. OSC RE: Legal Representation for Corporate Entity Plaintiff Thomas Solar Energy has not responded to the Order to Show Cause. In light of the foregoing ruling striking the First Amended Complaint on other grounds, the OSC is hereby vacated. An OSC re: Dismissal is set for September 11, 2026 at 9:30 AM in this department. Moving Party shall provide notice.
4	Saadeh vs. Bdair 2022-01248722	Motion for Reconsideration Plaintiff Belal Saadeh's motion for correction and clarification or alternatively for reconsideration is GRANTED, as follows. As requested, the Court on its motion reconsiders its 5/29/26 ruling on defendant Mohamad Bdair's motion to compel further responses to his second set of requests for